

RESOLUTION OF EXPIRATION OF PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On July 19, 2022, a complaint was filed with the Spanish Agency for Data Protection. The complaint is directed against VODAFONE ESPAÑA, S.A.U. with NIF A80907397 (hereinafter, the complained party or Vodafone). The reasons for the complaint are as follows:

The complainant states that the complained entity, of which they are a customer, has provided a copy of their phone bill, which includes their personal data (full name, postal address, and identity number), to the email address of a third party, without their consent.

Furthermore, they indicate that days before the aforementioned data leak, they requested Vodafone to activate a personal security code on their mobile line, because they feared that a third party could access their personal data, stating that the entity indicated it was unnecessary as they had strong security measures in place.

Documentation provided by the complainant:

- Recording of the call made by the complainant to Vodafone's customer service on July 13, 2022, in which the Vodafone agent confirms the sending of a copy of their bill and personal data to a third-party email address that does not appear as authorized in the complainant's customer file, recommending that they file a report with the police and informing that in a few days they will send a copy of the recording in which the unauthorized access to the complainant's data by a third party occurs.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: On October 19, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

FOURTH: On October 20, 2022, a written response from Vodafone was received by this Agency in response to the transfer of the complaint.

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FIFTH: On October 25, 2022, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to archive the complaint. The resolution was notified to the complainant on October 25, 2022, as evidenced in the file.

SIXTH: On October 25, 2022, the complainant submitted a written appeal for reconsideration against the archiving resolution issued in the reference file, expressing their disagreement with the contested resolution and requesting that the processing of the initial complaint continue.

SEVENTH: On April 3, 2023, the appeal filed was sent to the complained party in accordance with the provisions of Article 118.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) for them to make allegations and present any documents and evidence they deemed appropriate. Although this document was notified to Vodafone on April 10, 2023, the entity did not submit any allegations or documents.

EIGHTH: On July 13, 2023, the appeal for reconsideration filed by the complainant against the resolution of this Agency issued on October 25, 2022, which agreed to archive the complaint regarding Vodafone, was upheld so that the processing may continue.

NINTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary

investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred on each control authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development and, in so far as they do not contradict them, by the general principles of administrative law."

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subsidiary, according to the general rules on administrative procedures."

II

Preliminary Investigation Actions

Article 67 of the LOPDGDD, in its wording in force at the time the preliminary investigation actions mentioned in the background of this resolution were initiated, establishes the following:

"1. Before the adoption of the agreement to initiate proceedings, and once the complaint has been admitted for processing, if any, the Spanish Agency for Data Protection may carry out preliminary investigation actions in order to achieve a better determination of the facts and circumstances that justify the processing of the procedure. The Spanish Agency for Data Protection will act in any case when it is necessary to investigate treatments that involve massive traffic of personal data.

2. The preliminary investigation actions will be subject to the provisions of Section 2 of Chapter I of Title VII of this organic law and may not last longer than twelve months from the date of the admission agreement or from the date of the agreement deciding its initiation when the Spanish Agency for Data Protection acts on its own initiative or as a result of communication sent to it by the supervisory authority of another Member State of the European Union, in accordance with Article 64.3 of this organic law."

III

Expiration of Actions

In relation to the preliminary actions, the Development Regulation of the LOPD (RLOPD), approved by Royal Decree 1720/2007, of December 21, in force in all that does not contradict, oppose, or prove incompatible with the provisions of the GDPR and the LOPDGDD, in its Article 122.4 states that "The expiration of the period without an agreement to initiate sanctioning proceedings having been issued and notified will result in the expiration of the preliminary actions."

According to the provisions of the transcribed articles, the preliminary actions must be understood as expired if, more than twelve months have passed from the date of admission of the complaint, and no agreement to initiate sanctioning proceedings has been issued and notified.

In the present case, the computation of the twelve-month maximum duration of the preliminary actions began on October 19, 2022, therefore they must be declared expired.

Thus, in accordance with the above, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO DECLARE the EXPIRATION of the present preliminary investigation actions.

SECOND: TO NOTIFY this Resolution to VODAFONE ESPAÑA, S.A.U. and to the complainant. Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

907-091222

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy of the Presidency and Deputy Presidency

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